

24STCV13617 24STCV13617

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-06-30

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C413%2C06%2F30%2F2026

Source SHA-256: 519f3f46e9f4777da429b5245196f48ea65b739e7d5fae5bb9258d1174e720b2

Case Number: 24STCV13617 Hearing Date: June 30, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 06/30/2026

CASE NUMBER: 24STCV13617

CASE NAME: ANGEL TAYLOR vs LOS ANGELES COUNTY USC, et al.

MOVING PARTY: Rashad Haywood (Defendant); LOS ANGELES COUNTY (Defendant)

OPPOSING PARTY: Angel Taylor (Plaintiff)

PROCEEDING: MOTION FOR SUMMARY JUDGMENT

RULING SUMMARY: Defendants County of Los Angeles and Rashad Haywood's Motion for Summary Judgment is denied.

Defendants County of Los Angeles ("COLA") and Rashad Haywood's Motion for Summary Adjudication is GRANTED as to the Seventh Cause of Action (Failure to Engage in the Interactive Process in Violation of FEHA against COLA); and DENIED as to the First Cause of Action (Retaliation (FEHA) against COLA), Second Cause of Action (Retaliation (FEHA) against COLA), Third Cause of Action (Failure to Prevent Harassment and Retaliation against COLA), Fourth Cause of Action (Retaliation in Violation of California Labor Code against COLA), the Fifth Cause of Action (Negligent Hiring and Supervision against COLA), Sixth Cause of Action (Intentional Infliction of Emotional Distress against Defendants), and Eighth Cause of Action (Failure to Accommodate in Violation of FEHA against COLA).

Background

Plaintiff Angel Taylor ("Plaintiff") filed her Complaint against Defendants County of Los Angeles ("COLA"), Rashad Haywood ("Haywood"), and Norma Santos ("Santos" and, with COLA and Haywood, "Defendants") on May 31, 2024.

The First Amended Complaint ("FAC"), filed on June 12, 2024, alleges eight causes of action for: (1) Sexual Harassment against COLA and Haywood; (2) Retaliation (FEHA) against COLA and Santos; (3) Failure to Prevent Harassment and

Retaliation against COLA; (4) Retaliation in Violation of California Labor Code against COLA and Santos; (5) Negligent Hiring and Supervision against COLA; (6) Intentional Infliction of Emotional Distress ("IIED") against Defendants; (7) Failure to Engage in the Interactive Process in Violation of FEHA against COLA; and (8) Failure to Accommodate in Violation of FEHA against COLA.

Plaintiff alleges that in or about January 2022, she began work at COLA where she was sexually harassed by Haywood, her supervisor. Plaintiff further alleges that in September 2023, she reported the harassment to her supervisors, including Santos; however, Santos expressed that she did not believe Haywood would sexually harass Plaintiff and accused Plaintiff of lying. Plaintiff contends that, thereafter, COLA and Santos began retaliating against her through their actions, including but not limited to, not investigating the matter, failing to provide information to the workers' compensation adjuster, refusing to allow Plaintiff to work overtime, and failing to provide Plaintiff with accommodations when she was pregnant. Plaintiff further alleges that COLA knew Haywood has previously engaged in similar behavior with other female employees and knew, or should have known, that Haywood would engage in such unlawful behavior with Plaintiff.

On October 11, 2024, Defendants COLA and Haywood (collectively "Moving Defendants") filed their Answer to the FAC.

On September 9, 2024, Plaintiff filed a request to dismiss Santos without prejudice.

On April 30, 2025, the parties stipulated to continue the trial date.

On February 02, 2026, Moving Defendants filed this Motion for Summary Judgment, or in the alternative, Summary Adjudication. On February 18, 2026, Moving Defendants filed an ex parte application regarding advancing and specially setting the hearing date for this Motion for Summary Judgment, or in the alternative, Summary Adjudication. On May 18, 2026, Plaintiff filed her Opposition to the Motion for Summary Judgment, or in the alternative, Summary Adjudication.

Code of Civil Procedure section 437c provides: "An opposition to the motion shall be served and filed not less than 20 days preceding the noticed or continued date of hearing, unless the court for good cause orders otherwise. The opposition, where appropriate, shall consist of affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice shall or may be taken." (Code Civ. Proc. § 437c(b)(2).) Twenty days before June 5, 2026 is May 16, 2026. May 16, 2026 is a Saturday. California Rules of Court, Rule 1.10(b) provides: "Unless otherwise provided by law, if the last day for the performance of any act that is required by these rules to be performed within a specific period of time falls on a Saturday, Sunday, or other legal holiday, the period is extended to and includes the next day that is not a holiday." The Monday following May 16, 2026 is May 18, 2026. Plaintiff's Opposition is timely.

On May 22, 2026, Moving Defendants filed their Reply.

LEGAL STANDARD – SUMMARY JUDGMENT/ADJUDICATION

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co., (2001) 25 Cal.4th 826, 843.). Code of Civil Procedure, section 437c(c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.) "The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings." (Juge v. County of Sacramento, (1993) 12 Cal.App.4th 59, 67, citing FPI Development, Inc. v. Nakashima, (1991) 231 Cal.App.3d 367, 381-382.)

As to each claim as framed by the complaint, the defendant moving for summary judgment must satisfy the initial burden of proof by presenting facts to negate an essential element, or to establish a defense. (Code Civ. Proc. § 437c(p)(2); *Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1520.) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389.)

Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166.)

DISCUSSION

A. First Cause of Action (Sexual Harassment against COLA and Haywood)

Moving Defendants argue that Haywood’s actions were neither “severe in the extreme” as required under *Hughes v. Pair* (2009) 46 Cal.4th 1035 (“*Hughes*”) nor pervasive under *Lyle v. Warner Bros. TV Prod.* (2006) 38 Cal.4th 264 (“*Lyle*”). They emphasize that case law, discussed below, holds more egregious conduct than that alleged to be actionable. Moving Defendants further argue that Plaintiff cannot demonstrate that Haywood’s actions were both subjectively and objectively offensive as Plaintiff drove to Haywood’s home in July 2023 (Pl.’s UMF Nos. 19, 20) and did not view Haywood’s conduct as “that bad” (id. at No. 51), and Haywood is not Plaintiff’s supervisor (id. at Nos. 15-16).

COLA provides a separate argument for itself. COLA argues that while “an employer is strictly liable for all acts of sexual harassment by a supervisor” under *State Dept. of Health Servs. v. Superior Ct.* (2003) 31 Cal.4th 1026 (“*State Dept. Health Services*”), such liability for the employer does not apply where the harasser is a non-supervisory employee. According to COLA, *Carrisales v. Dept. of Corrections* (1999) 21 Cal.4th 1132 (“*Carrisales*”) holds that where an employer “takes immediate and appropriate corrective action when it becomes or reasonably should become aware of the [alleged] conduct” of a non-supervisory employee, “there is simply no ‘unlawful employment practice’ that the FEHA governs.” COLA contends that it immediately investigated the situation (Pl.’s UMF Nos. 54-56) and issued a Direct Order to Haywood to stay away from Plaintiff (id. at 52.) COLA maintains that it had no prior complaints of alleged sexual harassment concerning Haywood. (Id. at 42.) COLA contends that, due to the circumstances surrounding the alleged conduct, it is not strictly liable for any of Haywood’s alleged conduct.

Plaintiff brings this cause of action under FEHA, specifically Gov. Code §§ 12940(a) et seq., 12923, and 12940. (See FAC at ¶¶ 17-18.) “To establish a prima facie case of a hostile work environment, [the plaintiff] must show that (1) [plaintiff] is a member of a protected class; (2) [plaintiff] was subjected to unwelcome harassment; (3) the harassment was based on [plaintiff’s] protected status; (4) the harassment unreasonably interfered with [plaintiff’s] work performance by creating an intimidating, hostile, or offensive work environment; and (5) defendants are liable for the harassment.” (*Ortiz v. Dameron Hospital Assn.* (2019) 37 Cal.App.5th 568, 581.)

Government Code section 12940(j)(4)(C) provides: “For purposes of this subdivision, ‘harassment’ because of sex includes sexual harassment, gender harassment, and harassment based on pregnancy, childbirth, or related medical conditions. Sexually harassing conduct need not be motivated by sexual desire.” (Emphasis Added.) “To be actionable, ‘a sexually objectionable environment must be both objectively and subjectively offensive, one that a reasonable person would find hostile or abusive, and one that the victim in fact did perceive to be so.’ That means a plaintiff who subjectively perceives the workplace as hostile or abusive will not prevail under the FEHA, if a reasonable person in the plaintiff’s position, considering all the circumstances, would not share the same perception. Likewise, a plaintiff who does not perceive the workplace as hostile or abusive will not prevail, even if it objectively is so.” (*Lyle*, supra, 38 Cal.4th 264, 284.) Further the harassment must be sufficiently severe or pervasive to create an objectively hostile or abusive work environment. (See *Kelly-Zurian v. Wohl Shoe Co., Inc.* (1994) 22 Cal.App.4th 397, 409; *Etter v. Veriflo Corp.* (1998) 67 Cal.App.4th 457, 464-465; *Aguilar v. Avis Rent A Car System, Inc.* (1999) 21 Cal.4th 121, 129-130.)

Cal.App.5th 663 makes clear that the standard has changed

and “harassing conduct need only have ‘unreasonably interfered with

the plaintiff’s work performance or created an intimidating, hostile, or

offensive work environment.’ ” (See *id.* at 698-99.)

The gravamen of Plaintiff’s sexual harassment claim is Haywood’s conduct toward Plaintiff. (See FAC at ¶¶ 20-21.)

Defendant has provided exhibits evidencing:

(1) at the time of Plaintiff’s hire, Haywood was an Acting Custodian Supervisor assigned to the swing shift (Pl.’s UMF No. 13);

(2) Plaintiff was initially assigned to the swing shift, but was transferred to the morning shift in or about September 2022, and remained there during the time of the alleged events in this action (*id.* at No. 10-11);

(3) Plaintiff reached out to Haywood to fix her time and “other stuff” as well as requested a letter of recommendation from Haywood (*id.* at Nos. 19-20);

(4) on or about July 13, 2022, Plaintiff went to Haywood’s home to braid his hair with her son, but left before braiding (*id.* at Nos. 23-25);

(5) in or around July 3, 2023, Plaintiff once again drove to Haywood’s house to braid his hair and was there for about one hour (*id.* at No. 26-27);

(6) as of July 2023, Plaintiff felt safe going to Haywood’s home to braid his hair (*id.* at No. 28);

(7) Haywood did not make Plaintiff feel uncomfortable when she was at his house and nothing inappropriate occurred between them (*id.* at No. 29);

(8) On or about September 25, 2023, Plaintiff asked Haywood, “What do you want me to give you for the [donated time]?” and Haywood responded, “Just your body” (*id.* at Nos. 30-31);

(9) On September 25, 2023, Haywood said “I thought you were going to give me some sex” or something along those lines (*id.* at No. 32);

(10) After the September 25, 2023 incident, Haywood apologized several times and no further communication occurred between the parties (*id.* at Nos. 35-40);

(11) Plaintiff's allegations in her County Policy of Equity for Employees ("CPOE"), filed by Santos, contains further allegations (id. at Nos. 49-50);

(12) A Direct Order of No Contact was issued on October 30, 2023 (id. at No. 53).

While the CPOE contains other allegations, no evidence was offered as to whether these events occurred.

The Court notes that Moving Defendant's Exhibit J does not include any deposition testimony past page 171, the certification of the certified shorthand reporter is labeled as page 201, and the deposition exhibits begin afterwards (i.e., text messages, recommendation letter, Direct Order – No Contact, etc.). (See Pl.'s Compendium of Exhibits at Exh. J.) The next Compendium of Exhibits as filed begins with Exhibit K. (See id. at Exh. K.) The Court has looked at each UMF cited above, individually, and cross-checked citations where both Plaintiff's deposition is cited with other exhibits.

The Court further notes that, while COLA asserts that Haywood did not supervise Plaintiff at the time of her hire in UMF No. 15, the cited evidence does not support this contention. Rather, Plaintiff explicitly states that she believed Haywood was a supervisor and the only one acting at the time she was on the swing shift. (See Exh. J at 136:23-137:3) Further, by Moving Defendants' own presentation of the facts, Plaintiff was on the swing shift (Pl.'s UMF No. 9) and, at the time of Plaintiff's hire, Haywood was an acting custodian supervisor assigned to the swing shift (id. at No. 13). As such, COLA does not establish as a matter of law that Haywood was not a supervisor.

The Court summarizes the case law cited by Moving Defendants:

- Brennan v. Townsend & O'Leary Enterprises, Inc. (2011) 199 Cal.App.4th 1336: Superseded by Cal. Gov. Code § 12923;
- Dominguez v. Washington Mutual Bank (2008) 168 Cal.App.4th 714: Dominguez raised triable issues of fact that a continuing violation occurred after Gutierrez stopped his sexual-orientation-themed verbal attacks. Despite respondents' attempt to minimize Gutierrez's conduct, Dominguez's account depicted a months-long, continual campaign to make her work life miserable, including blocking access to her workstations with boxes, lying about mail he had ready to process, then forcing Dominguez to redo her work. The appellate court held that a reasonable inference arises that the alleged misconduct was just another way for Gutierrez to harass Dominguez about her sexual orientation without expressly saying so.
- Singleton v. U.S. Gypsum Co. (2006) 140 Cal.App.4th 1547 – For purposes of summary judgment, an employee's testimony had to be taken as true, and the testimony provided evidence that comments in the workplace created a hostile environment because of sex and the creation of difficult working conditions.
- Westendorf v. W. Coast Contr. of Nev., Inc. (9th Cir. 2013) 712 F.3d 417: This case did not apply Cal. Gov. Code § 12923 and is, as such, distinguished,

These cases, cited by Moving Defendants, do not support their argument that sexual harassment that was much more egregious than the conduct alleged in this matter has repeatedly been found to be non-actionable.

Based on the evidence offered by Moving Defendants, which focuses on an incident on September 25, 2023, offending conduct was neither sufficiently severe or pervasive to create an objectively hostile or abusive work environment as required under the applicable case law; nor did it interfere with the plaintiff's work performance or create an intimidating, hostile, or offensive work environment, as the parties ceased communication after the incident. Therefore, Moving Defendants sufficiently met their initial burden to negate an element or establish a defense thereto. The burden shifts to Plaintiff.

Plaintiff argues that a single incident of harassing conduct is sufficient to create a triable issue regarding the existence of a hostile work environment if the harassing conduct has unreasonably interfered with the plaintiff's work performance or created an intimidating, hostile, or offensive working environment and that hostile work environment cases are not determinable on paper. Plaintiff maintains that she endured Haywood's advances for two years.

In support, Plaintiff provides her own declaration, in which she states that Haywood (1) was constantly making comments to her, from January 2022 through the incident in September 2023 such as "you are fine" three or four times a day (Plaintiff Decl. ¶ 4); (2) such advances made Plaintiff not want to come to work (id. ¶ 4); (3) Haywood's advances included physical advances in an elevator, and were more aggressive when he was drunk at work (id. ¶¶ 5-6); and (4) Haywood's advances made her feel very uncomfortable, emotionally stressed, humiliated and anxious (id. ¶¶ 3, 5).

Applying Singleton, and accepting Plaintiff's testimony as true, for the purposes of the motion for summary judgment, the question is whether the totality of Haywood's actions created a hostile work environment because of sex. (Singleton, supra, 140 Cal.App.4th at 1559.) The evidence offered by Plaintiff creates a triable issue of material fact as to whether the conduct, Haywood's comments to and conduct toward Plaintiff from approximately December 2019 to approximately November 2023, was sufficiently severe or pervasive, creating a hostile work environment or interfered with her work performance. Plaintiff's testimony alone is enough to meet her burden.

The Motion for Summary Adjudication as to the First Cause of Action (Sexual Harassment) is DENIED.

B. Second Cause of Action (Retaliation (FEHA, against COLA))

COLA contends that Plaintiff's prima facie case for retaliation fails because Plaintiff has not suffered an adverse employment action. COLA asserts that Plaintiff's allegations are disputed by Plaintiff's own testimony and the evidence in the case. COLA highlights the actions it took, arguing that its explanation is credible and allowed on summary judgment because Plaintiff has the burden to rebut COLA's showing by pointing to evidence which nonetheless raises a rational inference that intentional discrimination occurred under *Guz v. Bechtel Nat., Inc.* (2000) 24 Cal.4th 317 ("Guz").

"[I]n order to establish a prima facie case of retaliation under the FEHA, a plaintiff must show (1) he or she engaged in a 'protected activity,' (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer's action. Once an employee establishes a prima facie case, the employer is required to offer a legitimate, nonretaliatory reason for the adverse employment action. If the employer produces a legitimate reason for the adverse employment action, the presumption of retaliation ' " 'drops out of the picture,' " ' and the burden shifts back to the employee to prove intentional retaliation." (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1052-1056.) Retaliation in violation of the FEHA may be established by constructive discharge. (See *Steele v. Youthful Offender Parole Bd.* (2008) 162 Cal.App.4th 1241, 1253.)

Plaintiff's allegations constituting retaliation are (1) accusations of lying after Plaintiff filed a workers' compensation claim, (2) failure to investigate the matter and keep her harasser away from her, (3) mandating a complaint under penalty of perjury to follow up on the sexual harassment complaint, (4) failure to provide information to the workers' compensation adjuster leading to Plaintiff's claim denial, (5) refusal to allow Plaintiff to work overtime, and (6) failure to accommodate Plaintiff while she was pregnant. (See FAC ¶¶ 29-31, 11-14.)

COLA highlights its UMF Numbers 52, 54-55, 57-58, 64-67. The Court has discussed above the issue with the evidence.

The evidence shows:

- COLA issued a Direct Order to Haywood, instructing him to refrain from "contact of any kind" with Plaintiff, "whether face-to-face, by telephone or electronically." (Exh. J at Exh. 8, Exh. K at 57:9-21 and Exh. 8, Decl. Haywood at ¶ 3 and Exh. H);

- COLA conducted an interview with Plaintiff and Haywood (Decl. Robert Myrtle ("Myrtle") ¶ 14);
- COLA conducted an Interactive Process Meeting ("IPM") with Plaintiff concerning "no bending, squatting, climbing or reaching" (Exh. J at Exh. 1);
- During the IPM, Plaintiff indicated that she was working with her restrictions and Cecilia Duarte, Senior Custodian Supervisor confirmed that no accommodation was needed as Plaintiff had been working without any complications (ibid); and
- COLA interviewed Plaintiff and Santos after Plaintiff filed a CPOE against Santos (Decl. Myrtle at ¶¶ 15-16).

In *Guz*, the defendant's explanation of nondiscriminatory reasons was creditable on its face and the *Guz* Court highlighted that the plaintiff had conceded the truth of the defendant's proffered reasons. (*Guz*, supra, 24 Cal.4th at 357.) The Court further discussed that the defendant's burden was made by "competent and admissible evidence," and highlighted that "an inference of intentional discrimination cannot be drawn solely from evidence," so courts look to evidence supporting a rational inference that "intentional discrimination, on grounds prohibited by the statute was the true cause of the employer's actions." (Id. at 361.) The Court held that "that intentional discrimination, on grounds prohibited by the statute, was the true cause of the employer's actions." (Ibid.)

The evidence presented by COLA here shows that no adverse employment action occurred, as COLA followed up on the sexual harassment complaint and the matter was investigated, a Direct Order for no contact was issued to Haywood, and no accommodations during Plaintiff's pregnancy were needed,

The Court notes that issues regarding the insurance adjuster and the worker's compensation claim were not fully discussed; however, it appears from the evidence presented that the determination was not causally affected by COLA's actions. (See *Mamou v. Trendwest Resorts, Inc.* (2008) 165 Cal.App.4th 686, 713 [discussing the causal link between the retaliatory animus and the adverse action and the causal link between the adverse action and damages].)

Accordingly, COLA has met its initial burden, and the burden shifts to Plaintiff.

Plaintiff argues that a triable issue of fact exists as to retaliation as the evidence shows that (1) Santos "essentially" called Plaintiff a liar in reporting the harassment (see Opp. 15:22-23), (2) Santos delayed filing Plaintiff's CPOE against Santos, (3) Santos invited co-workers into private discussions about Plaintiff's claims; (4) Santos lied to Plaintiff by informing Plaintiff that those coworkers signed affidavits accusing Plaintiff of wrongdoing; (5) Santos forced Plaintiff to attend meetings and receive assignments from Haywood; (6) Santos refused to give Plaintiff overtime; (7) Santos falsely accused Plaintiff of neglecting her duties; (8) Santos gave Plaintiff the most difficult assignment that threatened her health; and (7) Santos sent Plaintiff to an abandoned building for a doctor's appointment. (See Opp. 15:20-16:4).

Plaintiff's Opposition claims are different from those framed in her pleadings. The pleadings define the scope of the issues on a motion for summary judgment or summary adjudication. (*FPI Dev. Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 381382.) Because a motion for summary judgment or summary adjudication is limited to the issues raised by the pleadings (see *Lewis v. Chevron* (2004) 119 Cal. App. 4th 690, 694), all evidence submitted in support of or in opposition to the motion must be addressed to the claims and defenses raised in the pleadings. The Court cannot consider an unpleaded issue in ruling on a motion for summary judgment or summary adjudication. (*Roth v. Rhodes* (1994) 25 Cal.App.4th 530, 541.)

As noted above, Plaintiff's allegations in the Second Cause of Action for Retaliation are retaliation by COLA in a manner that significantly and adversely impacted the terms, conditions, or privileges of Plaintiff's employment through (1) accusations of lying after Plaintiff filed a workers' compensation claim, (2) failure to investigate the matter, (3) failure to keep Plaintiff's harasser away from her, (4) mandating a complaint by Plaintiff under penalty of perjury to follow up on the sexual harassment complaint, (5) failure to provide information to the workers' compensation adjuster leading to Plaintiff's claim denial, (6)

refusal to allow Plaintiff to work overtime, and (7) failure to accommodate Plaintiff while she was pregnant. (See FAC ¶¶ 29-31, 11-14.)

The FAC does state that these allegations are “by way of example only.” (FAC at ¶ 11). The Court focuses on the examples outlined in the pleadings for the purpose of this motion.

Plaintiff’s cited exhibits, pertaining to the Second Cause of Action and the examples in the FAC, evidence the following:

- Santos expressed that she did not believe Plaintiff (see Decl. Plaintiff at ¶ 10; Exh. D at COLA 0843, 0845 [affidavits of others who “would not lie”]);
- Santos did not file Plaintiff’s CPOE against Santos for approximately 29 days (see Decl. Plaintiff at ¶ 10.);
- Plaintiff had to go to events where Haywood was leading after filing her CPOE against him and, when asked permission not go, was told no by Santos (Decl. Plaintiff at ¶ 14; Exh. B 55:4-20);
- Plaintiff was denied overtime due to her CPOE against Haywood (Decl. Plaintiff at ¶ 15; Exh. B 260:15-20);
- Santos assigned Plaintiff to harder assignments than her peers (id. at ¶ 17 [declaration only; Exh. A as attached is a court case and not an email by Plaintiff]);
- Plaintiff complained about Santos, including pregnancy related complaints, and an investigation was conducted determining that the facts alleged against Santos, even taken as true, are not jurisdictional to the CPOE (Decl. Brian Center at ¶ 8; Exh. H);
- Santos expressed she needed Plaintiff’s affidavit for the CPOE (Exh. D at COLA 0846-0848)

Exhibit B, Plaintiff’s deposition, provided with Plaintiff’s Opposition, is cited for pages 304 and 302-322, but the Exhibit does not contain those pages, jumping from page 289 to 337. Exhibit C, Steven’s deposition, which is over 100 pages long, is not numbered to allow for the Court to review the citations provided.

Plaintiff’s burden is “ ‘to prove, by competent evidence, that the employer’s proffered justification is mere pretext; i.e., that the presumptively valid reason for the employer’s action was in fact a coverup. . . . In responding to the employer’s showing of a legitimate reason for the complained-of action, the plaintiff cannot “ ‘simply show the employer’s decision was wrong, mistaken, or unwise. Rather, the employee ‘ “must demonstrate such weaknesses, implausibilities, inconsistencies, incoherencies, or contradictions in the employer’s proffered legitimate reasons for its action that a reasonable fact finder could rationally find them “unworthy of credence,” . . . and hence infer “that the employer did not act for the [asserted] non-discriminatory reasons.” ’ ’ ’ ” (Jumaane v. City of Los Angeles (2015) 241 Cal.App.4th 1390, 1409.)

“[A]n employer may be found to have engaged in an adverse employment action, and thus liable for retaliation under section 12940(h), ‘by permitting . . . fellow employees to punish [him] for invoking [his] rights.’ We therefore hold that an employer may be held liable for coworker retaliatory conduct if the employer knew or should have known of coworker retaliatory conduct and either participated and encouraged the conduct, or failed to take reasonable actions to end the retaliatory conduct.” (Kelley v. The Conco Cos. (2011) 196 Cal.App.4th 191, 213.)

Here, there are triable issue of material fact as: (1) Plaintiff engaged in a ‘protected activity’ by reporting sexual harassment/discrimination based on her sex; (2) the employer subjected the employee to an adverse employment action

through the actions of its supervisors and other employees, and (3) a causal link existed between the protected activity and the employer's action as the evidence shows, among other things, that individuals, preferred by Santos, filed affidavits stating Plaintiff was telling people she was harassed and certain supervisors did not want to help as they would become involved in the situation. The evidence also shows that COLA was involved in this process through the CPOE reports from Santos.

Once an employee establishes a prima facie case, the employer is required to offer a legitimate, nonretaliatory reason for the adverse employment action. If the employer produces a legitimate reason for the adverse employment action, the presumption of retaliation ' " 'drops out of the picture,' " ' and the burden shifts back to the employee to prove intentional retaliation." (See Yanowitz, supra, 36 Cal.4th 1028, 1056.)

COLA's Reply argues that Plaintiff's Opposition does not meaningfully argue or refute the arguments in the moving papers, reiterates the substantial and material standard, and emphasizes that Plaintiff was never demoted or subjected to a salary reduction.

COLA's Reply is not sufficient to show as a matter of law a legitimate, nonretaliatory reason for the adverse employment action, as the impact of Santos, other supervisors, and other coworkers, which form the adverse action, by Plaintiff remain unaddressed.

Accordingly, the Motion for Summary Adjudication as to the Second Cause of Action (Retaliation) is denied.

C. Third Cause of Action (Failure to Prevent Harassment and Retaliation, against COLA)

COLA argues that Plaintiff's Third Cause of Action cannot survive independently of her underlying FEHA claims and, due to the reasons above, her claims fail. COLA insists that the undisputed facts show that it took adequate measures to prevent harassment and that such steps were more than reasonable. COLA further highlights that it maintains two programs dedicated to compliance with COLA's policy of equity and responsible for investigating any complaints of alleged harassment and retaliation – CISU and CEOP; anti-harassment policies, special resources for complaints and more.

The Court has analyzed the causes of action above. As analyzed, Plaintiff's Third Cause of Action is premised on the FEHA claims which remain active as there are disputed issues of material fact.

Accordingly, COLA fails to meet its initial burden to present facts to negate an essential element or to establish a defense thereto. The Motion for Summary Adjudication as to the Third Cause of Action (Failure to Prevent Harassment and Retaliation against COLA) is denied.

D. Fourth Cause of Action (Retaliation in Violation of California Labor Code, against COLA)

COLA has incorporated its arguments for the Second Cause of Action (Retaliation (FEHA) against COLA) as for the Fourth Cause of Action. Likewise, Plaintiff's Opposition and the Reply address the retaliation claims, the Second Cause of Action and the Fourth Cause of Action, together.

This cause of action is based on Labor Code sections 1102.5, 98.6, 6310, and 232.5. (See FAC at ¶ 43.) The test for a Labor Code section 1102.5 retaliation claim is substantially similar to that of a FEHA retaliation claim. (See Lawson v. PPG Architectural Finishes, Inc. (2022) 12 Cal.5th 703, 710 [Applying McDonnell Douglas framework, as explained in Guz, to Lab. Code § 1102.5 claims].) The Court's analysis for the Second Cause of Action is applicable as to the Fourth Cause of Action.

Accordingly, the Motion for Summary Adjudication as to the Fourth Cause of Action (Retaliation in Violation of California Labor Code against COLA) is denied.

E. Fifth Cause of Action (Negligent Hiring and Supervision, against COLA)

COLA argues that the Fifth Cause of Action is barred by the exclusivity of the Workers' Compensation Act. COLA relies on the following cases:

- *Fermino v. Fedco, Inc.* (1994) 7 Cal.4th 701, 710 - both the language and the legislative history of the WCA made clear that the Legislature was focused on eliminating, "tort common law concepts of negligence;"
- *Coit Drapery Cleaners, Inc. v. Sequoia Ins. Co.* (1993) 14 Cal.App.4th 1595, 1606 - "any claim for mere negligence by [the employer] would be barred by the [WCA] . . . and [employee] may not sue for its allegedly negligent or improper supervision;"
- *Arendell v. AutoParts Cost Club, Inc.* (1994) 29 Cal.App.4th 1261, 1264 - "injuries caused by employer negligence or without fault . . . are subject to workers' compensation exclusivity;"
- *Kacludis v. GTE Sprint Comm. Corp.* (N.D. Cal. 1992) 806 F.Supp. 866 - District court, applying California law, dismissed claim for negligent supervision based on WCA preemption;
- *Gillespie v. Northridge Hospital Foundation* (1971) 20 Cal.App.3d 867, 870-871 - exclusive remedy of workers compensation preempts an employee's recovery for negligent infliction of emotional distress and loss of consortium; and
- *Robomatic, Inc. v. Vetco Offshore* (1990) 225 Cal.App.3d 270, 272 - "[A] workers' compensation proceeding is Rehka's exclusive remedy for negligent infliction of emotional distress ensuring from dismissal of employment."

Liability for negligent hiring and supervision is based upon the reasoning that if an enterprise hires individuals with characteristics that might pose a danger to customers or other employees, the enterprise should bear the loss caused by the wrongdoing of its incompetent or unfit employees. The tort has developed in California in factual settings where the plaintiff's injury occurred in the workplace, or the contact between the plaintiff and the employee was generated by the employment relationship. (*Mendoza v. City of Los Angeles* (1998) 66 Cal.App.4th 1333, 1339-1340.)

To establish a cause of action for negligent hiring, retention, or supervision, a plaintiff must show that the employer knew or should have known that hiring the employee created a particular risk or hazard and that particular harm occurs. (See *Z.V. v. County of Riverside* (2015) 238 Cal.App.4th 889, 902; *Doe v. Capital Cities* (1996) 50 Cal.App.4th 1038, 1054.)

Plaintiff states in her Opposition that she is not pursuing a claim of negligent hiring, but rather a claim for failure to supervise only. (See Opp. 17:27-18-1.) Plaintiff argues that the decision of what is actionable depends on whether the underlying alleged conduct falls outside of the compensation bargain. Plaintiff incorporates her previous arguments regarding harassment and retaliation. For this cause of action, Plaintiff relies on the following cases:

- *Brooks v. Corecivic of Tennessee* (S.D. Cal. 2020) 2020 WL5294614 – An unreported federal case concerning a negligent supervision claim during COVID-19 where the plaintiff took issue with her employer's response to the pandemic. The federal court held that the plaintiff's negligent supervision claim was barred by workers' compensation exclusivity; and
- *Light v. Department of Parks and Recreation* (2017) 14 Cal.App.5th 75, 100-101: The reviewing court held: "In sum, absent further guidance from our Supreme Court, we are unwilling to abandon the long-standing view that unlawful discrimination and retaliation in violation of FEHA falls outside the compensation bargain and therefore claims of intentional infliction of emotional distress based on such discrimination and retaliation are not subject to workers' compensation exclusivity."

As alleged, Plaintiff's Fifth Cause of Action for negligent supervision is derivative of her FEHA claims. Numerous cases more recent than the cases cited by Moving Defendants have held that a negligent supervision claim in this context is a viable claim. (E.g., *Ortega v. Contra Costa Community College District* (2007) 156 Cal.App.4th 1073, 1086 (non-FEHA claims against employer for, among other bases, negligent supervision, viable); see *Ventura v. ABM Industries, Inc.* (2012) 212 Cal.App.4th 258, 266 (judgment on verdict for plaintiff on negligent hiring and supervision claim against employer in sexual harassment case affirmed).)

The Court does not find that Moving Defendants have established as a matter of law that, based on the facts alleged and the evidence of disputed material facts, they are entitled to judgment on the Fifth Cause of Action. Their motion for summary adjudication on this cause of action is denied.

F. Sixth Cause of Action (IIED against Defendants)

Moving Defendants argue that Plaintiff has not come close to establishing the requisite outrageous conduct against either defendant. It appears that Moving Defendants have also included a workers' compensation exclusivity argument by way of footnote, citing to *Cole v. Fair Oaks Fire Protection Dist.* (1987) 43 Cal.3d 148, 160 only. (See Mtn. at p. 19 at fn. 5.) Moving Defendants incorporate all their SSUMFs by reference. (See both SSUMFs at Issue No. 6.)

The elements of the tort of IIED are: "(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct... Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community." (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903 [internal quotations omitted].) Liability does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities. (*Molko v. Holy Spirit Ass'n* (1986) 46 Cal.3d 1092, 1122.)

As pled, the allegations forming the basis of the IIED claim are: "Defendants knew that sexually harassing Plaintiff and then gaslighting her to act like she did something wrong, and then force her into dangerous work that could harm her pregnancy, could cause severe emotional stress. On information and belief, LA County was aware of this conduct and ratified it through its failure to investigate or address the issue in any manner." (FAC at ¶ 53.)

The Court is not swayed by Moving Defendants' arguments. As alleged, the conduct is not mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities. And the allegations are substantially identical to that of Plaintiff's FEHA claim, making this claim parallel to that in *Light v. Department of Parks and Recreation* (2017) 14 Cal.App.5th 75.

Moving Defendants do not meet their initial burden of proof. The burden does not shift to Plaintiff. Accordingly, the Motion for Summary Adjudication as to Fifth Cause of Action (IIED) is denied.

G. Seventh Cause of Action (Failure to Engage in the Interactive Process in Violation of FEHA against COLA)

COLA asserts that Plaintiff repeatedly admitted that she did not require an accommodation to complete the essential functions of her job, that COLA immediately engaged in the interactive process following receipt of a doctor's note, and that it was determined that no accommodation was needed. (See SSUMF Nos. 75-58.)[1]

Gov. Code § 12940(n) makes "failure to engage in a timely, good faith, interactive process with the employee or applicant to determine effective reasonable accommodations, if any, in response to a request for reasonable accommodation by an employee or applicant with a known physical or mental disability or known medical condition" an unlawful practice.

“ ‘The “interactive process” required by the FEHA is an informal process with the employee or the employee's representative, to attempt to identify a reasonable accommodation that will enable the employee to perform the job effectively. [Citation.] Ritualized discussions are not necessarily required.’ [Citation.]” (Scotch v. Art Institute of California (2009) 173 Cal.App.4th 986, 1009-1013 (“Scotch”).) “Unless a disability is obvious, it is the employee's burden to initiate the interactive process. [Citations.]” (Kao v. University of San Francisco (2014) 229 Cal.App.4th 437, 450.)

The evidence shows:

- COLA conducted an Interactive Process Meeting (“IPM”) with Plaintiff concerning “no bending, squatting, climbing or reaching” (Exh. J at Exh. 1);

- During the IPM, Plaintiff indicated that she was working with her restrictions and Cecilia Duarte, Senior Custodian Supervisor confirmed that no accommodation was needed as Plaintiff had been working without any complications (ibid.); and

- COLA interviewed Plaintiff and Santos after Plaintiff filed a CPOE against Santos (Decl. Myrtle at ¶¶ 15-16).

COLA has established that it engaged in an interactive process within the meaning of FEHA with Plaintiff during her pregnancy. Therefore, COLA meets its initial burden by negating an essential element of the Gov. Code § 12940(n) claim. The burden shifts to Plaintiff.

Plaintiff does not provide argument for the Seventh Cause of Action. (See Opp. at Table of Contents, p. 19 [jump from Sixth Cause of Action to Eighth Cause of Action]; see also Pl.'s SSUMF at Issue No. 7 [incorporated responses only].)

Plaintiff does not meet her burden to establish a triable issue of material fact.

Accordingly, the Motion for Summary Adjudication of the Seventh Cause of Action (Failure to Engage in the Interactive Process in Violation of FEHA against COLA) is granted.

H. Eighth Cause of Action (Failure to Accommodate in Violation of FEHA against COLA)

COLA incorporates its argument for the Seventh Cause of Action (Failure to Engage in the Interactive Process in Violation of FEHA against COLA) as though set forth for the Eighth Cause of Action.

As discussed above, the evidence shows:

- COLA conducted an Interactive Process Meeting (“IPM”) with Plaintiff concerning “no bending, squatting, climbing or reaching” (Exh. J at Exh. 1);

- During the IPM, Plaintiff indicated that she was working with her restrictions and Cecilia Duarte, Senior Custodian Supervisor confirmed that no accommodation was needed as Plaintiff had been working without any complications (ibid.); and

- COLA interviewed Plaintiff and Santos after Plaintiff filed a CPOE against Santos (Decl. Myrtle at ¶¶ 15-16).

Under FEHA, an employer must make reasonable accommodations for known physical or mental disabilities of an employee, unless it subjects the employer to an undue hardship. (Gov. Code § 12940(m).) “The elements of a failure to accommodate claim are (1) the plaintiff has a disability under the FEHA, (2) the plaintiff is qualified to perform the essential functions of the position, and (3) the employer failed to reasonably accommodate the plaintiff's disability. [Citation.]” (Scotch, supra, 173 Cal.App.4th 986, 1009-1010.) Plaintiff must also show he or she suffers from a disability covered by FEHA and that he or she is a qualified individual. (Jensen v. Wells Fargo Bank (2000) 85 Cal.App.4th 245, 256.)

COLA has established that it was determined that Plaintiff did not need an accommodation within the meaning of FEHA during her pregnancy. Therefore, COLA meets its initial burden by negating an essential element of the Gov. Code § 12940(m) claim. The burden shifts to Plaintiff.

Plaintiff argues that she informed her supervisors that she had work restrictions and a high-risk pregnancy, asked to be accommodated by not being given work that she felt like she could not do safely, and Santos refused.

Plaintiff has incorporated all SSUMFs for this cause of action. (See Pl.'s SSUMF at Issue No. 8.)

The Court believes the pertinent facts alleged as to this cause of action are:

- Santos assigned Plaintiff to harder assignments than her peers (id. at ¶ 17 [declaration only; Exh. A as attached is a court case and not an email by Plaintiff];
- Plaintiff complained about Santos, including pregnancy related complaints, and an investigation was conducted determining that the facts alleged against Santos, even taken as true, are not jurisdictional to the CPOE (Decl. Brian Center at ¶ 8; Exh. H);

As analyzed above, the Court believes Plaintiff's evidence is sufficient to show that there is a triable issue of disputed material fact as to the Eighth Cause of Action. Accordingly, the Motion for Summary Adjudication as to the Eighth Cause of Action is denied.

Conclusion

Defendants County of Los Angeles and Rashad Haywood's Motion for Summary Judgment is DENIED.

Defendants County of Los Angeles (“COLA”) and Rashad Haywood's Motion for Summary Adjudication is GRANTED as to the Seventh Cause of Action (Failure to Engage in the Interactive Process in Violation of FEHA against COLA); and DENIED as to the First Cause of Action (Retaliation (FEHA) against COLA), Second Cause of Action (Retaliation (FEHA) against COLA), Third Cause of Action (Failure to Prevent Harassment and Retaliation against COLA), Fourth Cause of Action (Retaliation in Violation of California Labor Code against COLA), the Fifth Cause of Action (Negligent Hiring and Supervision against COLA), Sixth Cause of Action (Intentional Infliction of Emotional Distress against Defendants), and Eighth Cause of Action (Failure to Accommodate in Violation of FEHA against COLA).

Date: 06/30/2026 _____

William E. Weinberger

Judge, Los Angeles Superior Court

[1] While the Memorandum of Points and Authorities in the moving papers highlight SSUMF Nos. 75-58, Moving Defendants' Separate Statement for this claim incorporates UMF Nos. 1-78.